Roe v. Wade

U.S. Supreme Court · 410 U.S. 113 · January 22, 1973 · Justice Harry Blackmun (majority)

Source: Oyez Project, oyez.org/cases/1971/70-18; Cornell LII, law.cornell.edu/supremecourt/text/410/113.

In a 7-2 decision, the Supreme Court struck down a Texas law criminalizing most abortions and held that the Constitution protects a woman's right to make decisions about her own pregnancy. Blackmun's majority opinion located that right in a 'zone of privacy' implied by the Due Process Clause of the Fourteenth Amendment and structured permissible state regulation around a trimester framework. Roe was a flashpoint of late-20th-century American politics; it was overturned by the Court in Dobbs v. Jackson Women's Health Organization (2022).

Connect: Roe uses the same 14th Amendment (Class 26) that was originally written to protect freedpeople after the Civil War. Trace how that amendment kept getting reinterpreted across a century.

Key Passages

The right of privacy

> This right of privacy … whether it be founded in the Fourteenth Amendment's concept of personal liberty and restrictions upon state action … or … in the Ninth Amendment's reservation of rights to the people, is broad enough to encompass a woman's decision whether or not to terminate her pregnancy.

The state's interest

> We, therefore, conclude that the right of personal privacy includes the abortion decision, but that this right is not unqualified, and must be considered against important state interests in regulation.

The trimester framework

> (a) For the stage prior to approximately the end of the first trimester, the abortion decision and its effectuation must be left to the medical judgment of the pregnant woman's attending physician. (b) For the stage subsequent to approximately the end of the first trimester, the State, in promoting its interest in the health of the mother, may, if it chooses, regulate the abortion procedure. (c) For the stage subsequent to viability, the State … may, if it chooses, regulate, and even proscribe, abortion.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The 1960s-70s women's movement and earlier privacy cases such as Griswold v. Connecticut (1965); many states had laws restricting abortion.
Intended Audience *Who was the source written for?*	The parties to the case, state legislatures, the courts, and the American public.
Point of View *Whose perspective? Whose is missing?*	Justice Harry Blackmun for the 7-2 majority, applying a constitutional right to privacy; the dissenters (White and Rehnquist) argued it should be left to the states.

HIPP Element	Your Analysis
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. LEQ Historical Reasoning — CCOT (1 pt): Write a thesis tracing change over time in women's legal status from 1848 (Seneca Falls) to 1973.

2. How did Roe rely on the same Fourteenth Amendment used to incorporate the Bill of Rights against the states?

3. Identify ONE later case that either expanded or restricted Roe before it was overturned in 2022.